

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 972

Introduced by Fredrickson, 20.

Read first time January 12, 2026

Committee:

1 A BILL FOR AN ACT relating to motor vehicles; to amend sections 18-1736,
2 37-1278.01, 60-376, 60-378, 60-3,167, 60-479, 60-4,112, 60-4,114,
3 60-4,114.01, 60-4,118.01, 60-4,121, 60-529, 60-6,340, 60-1901, and
4 60-1902, Reissue Revised Statutes of Nebraska, sections 60-3,135.01,
5 60-3,221, and 60-4,122, Revised Statutes Cumulative Supplement,
6 2024, and sections 28-306, 60-301, 60-302, 60-386, 60-3,100,
7 60-3,104, and 60-3,163.02, Revised Statutes Supplement, 2025; to
8 change provisions relating to the use of designated parking spaces
9 for handicapped or disabled persons; to change suspension of
10 operator's licenses to revocation of operator's licenses relating to
11 certain judgments of conviction; to change provisions relating to
12 bonded certificates of title for motorboats; to define a term; to
13 change and provide provisions relating to In Transits, transporter
14 license plates, applications for registration under the Motor
15 Vehicle Registration Act, and the display of license plates; to end
16 the issuance of special interest motor vehicle license plates as
17 prescribed; to provide for Choice Color Plates as a type of
18 alternate license plate; to recodify provisions relating to military
19 service applicable to certain persons as applicable to any
20 operator's license; to change and provide provisions under the Motor
21 Vehicle Operator's License Act relating to certain examinations and
22 to the renewal of certain licenses by qualified licensees; to change
23 provisions relating to proof of financial responsibility; to

1 eliminate provisions relating to snowmobile safety certificates; to
2 transfer provisions; to harmonize provisions; to repeal the original
3 sections; and to outright repeal section 60-6,341, Reissue Revised
4 Statutes of Nebraska.

5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 18-1736, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 18-1736 (1) A city or village may designate parking spaces,
4 including access aisles, for the exclusive use of (a) handicapped or
5 disabled persons whose motor vehicles display the distinguishing license
6 plates issued to handicapped or disabled persons pursuant to the Motor
7 Vehicle Registration Act ~~section 60-3,113~~, (b) handicapped or disabled
8 persons whose motor vehicles display a distinguishing license plate
9 issued to a handicapped or disabled person by another state, (c) such
10 other handicapped or disabled persons or temporarily handicapped or
11 disabled persons whose motor vehicles display a handicapped or disabled
12 parking permit, and (d) such other motor vehicles which display a
13 handicapped or disabled parking permit.

14 (2) If a city or village so designates a parking space or access
15 aisle, it shall be indicated by posting aboveground and immediately
16 adjacent to and visible from each space or access aisle a sign as
17 described in section 18-1737. In addition to such sign, the space or
18 access aisle may also be indicated by blue paint on the curb or edge of
19 the paved portion of the street adjacent to the space or access aisle.

20 (3) For purposes of sections 18-1736 to 18-1741.07:

21 (a) Access aisle has the same meaning as in section 60-302.01;

22 (b) Handicapped or disabled parking permit has the same meaning as
23 in section 60-331.01;

24 (c) Handicapped or disabled person has the same meaning as in
25 section 60-331.02; and

26 (d) Temporarily handicapped or disabled person has the same meaning
27 as in section 60-352.01.

28 **Sec. 2.** Section 28-306, Revised Statutes Supplement, 2025, is
29 amended to read:

30 28-306 (1) A person who causes the death of another unintentionally
31 while engaged in the operation of a motor vehicle in violation of the law

1 of the State of Nebraska or in violation of any city or village ordinance
2 commits motor vehicle homicide.

3 (2) Except as provided in subsection (3) of this section, motor
4 vehicle homicide is a Class I misdemeanor.

5 (3)(a) If the proximate cause of the death of another is the
6 operation of a motor vehicle in violation of section 60-6,213 or
7 60-6,214, motor vehicle homicide is a Class IIIA felony.

8 (b) If the proximate cause of the death of another is the operation
9 of a motor vehicle in violation of section 60-6,196 or 60-6,197.06, motor
10 vehicle homicide is a Class IIA felony.

11 (c) If the proximate cause of the death of another is the operation
12 of a motor vehicle in violation of section 60-6,196 or 60-6,197.06, motor
13 vehicle homicide is a Class II felony if the defendant has a prior
14 conviction for a violation of section 60-6,196 or 60-6,197.06, under a
15 city or village ordinance enacted in conformance with section 60-6,196,
16 or under a law of another state if, at the time of the conviction under
17 the law of such other state, the offense for which the defendant was
18 convicted would have been a violation of section 60-6,196.

19 (4)(a) For a conviction under subsection (2) or subdivision (3)(a)
20 of this section, the court may, as part of the judgment of conviction,
21 order the person not to drive any motor vehicle for any purpose for a
22 period of up to two years and order that the operator's license of such
23 person be revoked ~~suspended~~ for the same period.

24 (b) For a conviction under subdivision (3)(b) or (c) of this
25 section, the court shall, as part of the judgment of conviction, order
26 the person not to drive any motor vehicle for any purpose for a period of
27 fifteen years and shall order that the operator's license of such person
28 be revoked for the same period.

29 (5) An order of the court described in this section shall be
30 administered upon sentencing, upon final judgment of any appeal or
31 review, or upon the date that any probation is revoked.

1 (6) The crime punishable under this section shall be treated as a
2 separate and distinct offense from any other offense arising out of acts
3 alleged to have been committed while the person was in violation of this
4 section.

5 **Sec. 3.** Section 37-1278.01, Reissue Revised Statutes of Nebraska, is
6 amended to read:

7 37-1278.01 (1) The Department of Motor Vehicles shall issue a bonded
8 certificate of title to an applicant who:

9 (a) Presents evidence reasonably sufficient to satisfy the
10 department of the applicant's ownership of the motorboat or security
11 interest in the motorboat;

12 (b) Pays a fee of fifty dollars for motorboats manufactured on or
13 after January 1, 1990, and twenty dollars for motorboats manufactured
14 prior to January 1, 1990; and

15 (c) Files a bond in a form prescribed by the department and executed
16 by the applicant; and -

17 (d) Provides proof that written notice as prescribed in subsection
18 (6) of this section has been provided to each party with a secured
19 interest in the motorboat.

20 (2) The bond shall be issued by a surety company authorized to
21 transact business in this state, in an amount equal to one and one-half
22 times the value of the motorboat as determined by the department using
23 reasonable appraisal methods, and conditioned to indemnify any prior
24 owner and secured party, any subsequent purchaser and secured party, and
25 any successor of the purchaser and secured party for any expense, loss,
26 or damage, including reasonable attorney's fees, incurred by reason of
27 the issuance of the certificate of title to the motorboat or any defect
28 in or undisclosed security interest upon the right, title, and interest
29 of the applicant in and to the motorboat. An interested person may have a
30 cause of action to recover on the bond for a breach of the conditions of
31 the bond. The aggregate liability of the surety to all persons having a

1 claim shall not exceed the amount of the bond.

2 (3) At the end of three years after the issuance of the bond, the
3 holder of the certificate of title may apply to the department on a form
4 prescribed by the department for the release of the bond and the removal
5 of the notice required by subsection (4) of this section if no claim has
6 been made on the bond. The department may release the bond at the end of
7 three years after the issuance of the bond if all questions as to the
8 ownership of the motorboat have been answered to the satisfaction of the
9 department unless the department has been notified of the pendency of an
10 action to recover on the bond. If the currently valid certificate of
11 title is surrendered to the department, the department may release the
12 bond prior to the end of the three-year period.

13 (4) The department shall include the following statement on a bonded
14 certificate of title issued pursuant to this section and any subsequent
15 title issued as a result of a title transfer while the bond is in effect:

16 NOTICE: THIS MOTORBOAT MAY BE SUBJECT TO AN UNDISCLOSED INTEREST,
17 BOND NUMBER

18 (5) The department shall recall a bonded certificate of title if the
19 department finds that the application for the title contained a false
20 statement or if a check presented by the applicant for fees pursuant to
21 this section is returned uncollected by a financial institution.

22 (6)(a) Any applicant for a bonded certificate of title shall provide
23 written notice to any party with a secured interest in the motorboat that
24 is the subject of the application. Such written notice shall be provided
25 to the last-known address of each such party through certified mail with
26 return receipt requested and shall include a notice that the security
27 interest will be discharged if the party fails to respond within thirty
28 days after receiving the notice. If the lienholder responds, the response
29 shall be presented to the department along with the written notice and
30 certified mail receipt.

31 (b) Issuance of a bonded certificate of title shall extinguish any

1 lien or security interest regarding a motorboat for which the notice in
2 subdivision (a) of this subsection was provided if the lienholder does
3 not respond to such notice within thirty days after receiving the notice.

4 (7) {6} The department shall remit fees collected pursuant to this
5 section to the State Treasurer for credit to the Department of Motor
6 Vehicles Cash Fund.

7 **Sec. 4.** Section 60-301, Revised Statutes Supplement, 2025, is
8 amended to read:

9 60-301 Sections 60-301 to 60-3,236 and section 6 of this act shall
10 be known and may be cited as the Motor Vehicle Registration Act.

11 **Sec. 5.** Section 60-302, Revised Statutes Supplement, 2025, is
12 amended to read:

13 60-302 For purposes of the Motor Vehicle Registration Act, unless
14 the context otherwise requires, the definitions found in sections
15 60-302.01 to 60-360 and section 6 of this act shall be used.

16 **Sec. 6.** In Transit means a placard or sticker that authorizes a
17 motor vehicle or trailer that is not registered under the Motor Vehicle
18 Registration Act to be legally operated on highways.

19 **Sec. 7.** Section 60-376, Reissue Revised Statutes of Nebraska, is
20 amended to read:

21 60-376 (1) Subject to all the provisions of law relating to motor
22 vehicles and trailers not inconsistent with this section, any motor
23 vehicle dealer or trailer dealer who is regularly engaged within this
24 state in the business of buying and selling motor vehicles and trailers,
25 who regularly maintains within this state an established place of
26 business, and who desires to effect delivery of any motor vehicle or
27 trailer bought or sold by such dealer ~~him or her~~ from the point where
28 purchased or sold to points within or outside this state may, solely for
29 the purpose of such delivery by such dealer ~~himself or herself~~, such
30 dealer's ~~his or her~~ agent, or a bona fide purchaser, operate such motor
31 vehicle or tow such trailer on the highways of this state without charge

1 or registration of such motor vehicle or trailer.

2 (2)(a) For a motor vehicle described in subsection (1) of this
3 section, an In Transit A-sticker shall be displayed on the front and rear
4 window, a windows or the rear side window, or the rear windows of such
5 motor vehicle.

6 (b) For a trailer described in subsection (1) of this section, an In
7 Transit shall be , except an autocycle or a motorcycle, and displayed on
8 the front and rear of each such trailer.

9 (3)(a) Except as provided in subdivision (b) of this subsection, on
10 On the In Transit sticker shall be plainly printed in black letters the
11 words "In Transit" In Transit.

12 (b) For One In Transit sticker shall be displayed on an autocycle or
13 a motorcycle, the In Transit which sticker may be one-half the size
14 required for other motor vehicles.

15 (c) An In Transit Such stickers shall include a registration number
16 that is , which registration number shall be different for each motor
17 vehicle or trailer for which an In Transit is sticker or pair of stickers
18 issued. The , and the contents of such sticker and the numbering system
19 of the In Transit shall be as prescribed by the department.

20 (4) Each dealer issuing an In Transit such stickers shall keep a
21 record of the registration number of the In Transit each sticker or pair
22 of stickers on the invoice for the of such sale.

23 (5)(a) An In Transit Such sticker shall allow the operation of such
24 owner to operate the motor vehicle or the towing of the tow such trailer
25 for a period of thirty days in order to effect proper registration of the
26 new or used motor vehicle or trailer.

27 (b) When any person, firm, or corporation has had a motor vehicle or
28 trailer previously registered and license plates assigned to such person,
29 firm, or corporation, such owner may operate the motor vehicle may be
30 operated or tow such trailer may be towed for a period of thirty days in
31 order to effect the transfer of license plates to the new or used motor

1 vehicle or trailer.

2 (c) Upon demand of proper authorities, there shall be presented by
3 the person in charge of such motor vehicle or trailer, for examination, a
4 duly executed bill of sale therefor or other satisfactory evidence of the
5 right of possession by such person of such motor vehicle or trailer.

6 **Sec. 8.** Section 60-378, Reissue Revised Statutes of Nebraska, is
7 amended to read:

8 60-378 (1) Any transporter that is registered with the Secretary of
9 State and authorized to transact business ~~doing business~~ in this state
10 may, in lieu of registering each motor vehicle or trailer which such
11 transporter is transporting, upon payment of a fee of ten dollars, apply
12 to the department for a transporter's certificate and one transporter
13 license plate. Additional pairs of transporter certificates and
14 transporter license plates may be procured for a fee of ten dollars each.

15 (2) Transporter license plates shall be displayed upon:

16 (a) The ~~upon the~~ motor vehicle or trailer being transported; or

17 (b) A ~~upon a~~ properly registered truck or truck-tractor that ~~which~~
18 is a work or service vehicle in the process of towing a trailer that
19 ~~which~~ is itself being delivered by the transporter, ~~and such registered~~
20 ~~truck or truck-tractor shall also display a transporter plate upon the~~
21 ~~front thereof.~~

22 (3) The applicant for a transporter license plate shall keep for
23 three years a record of each motor vehicle or trailer transported by the
24 applicant ~~him or her~~ under this section. Such ~~, and such~~ record shall be
25 available to the department for inspection.

26 (4) Each applicant shall file with the department proof of his or
27 her status as a bona fide transporter.

28 (5) ~~(2)~~ Transporter license plates:

29 (a) May ~~may~~ be the same size as license plates issued for
30 motorcycles other than autocycles;

31 (b) Shall ~~, shall~~ bear ~~thereon~~ a mark to distinguish them as

1 transporter license plates; ~~7~~ and

2 (c) Shall ~~shall~~ be serially numbered so as to distinguish them from
3 each other.

4 (6) Transporter Such license plates shall ~~may~~ only be displayed upon
5 the;

6 (a) Front ~~front~~ of a driven motor vehicle of a lawful combination;

7 (b) Front ~~or upon the front~~ of a motor vehicle driven singly; ~~or~~

8 (c) Rear ~~upon the rear~~ of a trailer being towed; ~~or~~ ~~7~~

9 (d) Front of a registered truck or truck-tractor that is described
10 in subdivision (2)(b) of this section.

11 **Sec. 9.** Section 60-386, Revised Statutes Supplement, 2025, is
12 amended to read:

13 60-386 (1) Each ~~new~~ application shall contain, in addition to other
14 information as may be required by the department;

15 (a) The ~~7~~ the name and residential and mailing address of the
16 applicant;

17 (b)(i) The full legal name as defined in section 60-468.01 of each
18 owner; or

19 (ii) The name of each owner as such name appears on the owner's
20 motor vehicle operator's license or state identification card;

21 (c)(i) The motor vehicle operator's license number or state
22 identification card number of each owner, if applicable, and one or more
23 of the identification elements as listed in section 60-484 of each owner,
24 if applicable; and

25 (ii) If any owner is a business entity, a nonprofit organization, an
26 estate, a trust, or a church-controlled organization, its tax
27 identification number;

28 (d) A ~~and a~~ description of the motor vehicle or trailer, including
29 the color, the manufacturer, the identification number, the United States
30 Department of Transportation number if required by 49 C.F.R. 390.5
31 through 390.21, as such regulations existed on the date specified in

1 section 60-201, and the weight of the motor vehicle or trailer required
2 by the Motor Vehicle Registration Act; and -

3 (e) For trailers that are not required to have a certificate of
4 title under section 60-137, one of the following documents:

5 (i) If a properly assigned certificate of title indicating a
6 transfer of ownership exists for such trailer, such certificate of title;

7 (ii) If subdivision (1)(e)(i) of this section does not apply to such
8 trailer and such trailer was purchased by the applicant within the
9 thirty-day period that precedes the date of the application, the most
10 recently issued certificate of registration and bill of sale for such
11 trailer. A copy of the most recently issued certificate of registration
12 may be accepted in lieu of the original certificate of registration. If
13 the most recently issued certificate of registration is not available, a
14 county treasurer's office may verify via the Vehicle Title and
15 Registration System that the seller of the trailer that was specified on
16 such bill of sale was last owner of record;

17 (iii) If subdivisions (1)(e)(i) and (ii) of this section do not
18 apply to such trailer and such trailer was not previously registered
19 under the Motor Vehicle Registration Act, the bill of sale for such
20 trailer; or

21 (iv) If subdivisions (1)(e)(i), (ii), and (iii) of this section do
22 not apply to such trailer:

23 (A) A manufacturer's statement of origin that includes a description
24 of such trailer and all required ownership details that are adopted and
25 promulgated in rules and regulations by the department. Such
26 manufacturer's statement of origin may be issued directly to the
27 applicant;

28 (B) A valid military registration document for such trailer that was
29 issued by the United States Government;

30 (C) An SF 97-1 Form, Certificate to Obtain Title for such trailer
31 that was issued by the United States Government; or

1 (D) A completed and notarized untitled trailer affidavit that
2 affirms ownership.

3 (2) For trailers that ~~which~~ are not required to have a certificate
4 of title under section 60-137 and that ~~which~~ have no identification
5 number, the assignment of an identification number shall be required and
6 the identification number shall be issued by the county treasurer or
7 department.

8 (3) With the application the applicant shall:

9 (a) Pay ~~pay~~ the proper registration fee; and

10 (b) State ~~shall state~~ whether the motor vehicle is propelled by
11 alternative fuel and, if alternative fuel, the type of fuel.

12 (4) The application shall also contain a notification that bulk fuel
13 purchasers may be subject to federal excise tax liability. The department
14 shall include such notification in the notices required by section
15 60-3,186.

16 ~~(2) In addition to the information required under subsection (1) of~~
17 ~~this section, the application for registration shall contain~~

18 ~~(a)(i) the full legal name as defined in section 60-468.01 of each~~
19 ~~owner or~~

20 ~~(ii) the name of each owner as such name appears on the owner's~~
21 ~~motor vehicle operator's license or state identification card and~~

22 ~~(b)(i) the motor vehicle operator's license number or state~~
23 ~~identification card number of each owner, if applicable, and one or more~~
24 ~~of the identification elements as listed in section 60-484 of each owner,~~
25 ~~if applicable, and~~

26 ~~(ii) if any owner is a business entity, a nonprofit organization, an~~
27 ~~estate, a trust, or a church-controlled organization, its tax~~
28 ~~identification number.~~

29 **Sec. 10.** Section 60-3,100, Revised Statutes Supplement, 2025, is
30 amended to read:

31 60-3,100 (1) The department shall issue to every person whose motor

1 vehicle or trailer is registered one or two fully reflectorized license
2 plates upon which shall be displayed (a) the registration number
3 consisting of letters and numerals assigned to such motor vehicle or
4 trailer in figures not less than two and one-half inches nor more than
5 three inches in height and (b) also the word Nebraska suitably lettered
6 so as to be attractive. The license plates shall be of a color designated
7 by the director. The color of the plates shall be changed each time the
8 license plates are changed. Each time the license plates are changed, the
9 director shall secure competitive bids for materials pursuant to the
10 State Procurement Act. Autocycle, motorcycle, minitruck, low-speed
11 vehicle, and trailer license plate letters and numerals may be one-half
12 the size of those required in this section.

13 (2)(a) This subsection applies on and before December 31, 2028.

14 (b) Except as otherwise provided in this subsection, two license
15 plates shall be issued for every motor vehicle.

16 (c) One license plate shall be issued for (i) apportionable
17 vehicles, (ii) buses, (iii) dealers, (iv) minitrucks, (v) motorcycles,
18 other than autocycles, (vi) special interest motor vehicles that use the
19 special interest motor vehicle license plate authorized by and issued
20 under section 60-3,135.01, (vii) trailers, and (viii) truck-tractors.

21 (d)(i) One license plate shall be issued, upon request and
22 compliance with this subdivision, for any passenger car which is not
23 manufactured to be equipped with a bracket on the front of the vehicle to
24 display a license plate. A license decal shall be issued with the license
25 plate as provided in subdivision (ii) of this subdivision and shall be
26 displayed on the driver's side of the windshield. In order to request a
27 single license plate and license decal, there shall be an additional
28 annual nonrefundable registration fee of fifty dollars plus the cost of
29 the decal paid to the county treasurer at the time of registration. All
30 fees collected under this subdivision shall be remitted to the State
31 Treasurer for credit to the Highway Trust Fund.

1 (ii) The department shall design, procure, and furnish to the county
2 treasurers a license decal which shall be displayed as evidence that a
3 license plate has been obtained under this subdivision. Each county
4 treasurer shall furnish a license decal to the person obtaining the
5 plate.

6 (e)(i) ~~(e)~~ When two license plates are issued, one shall be
7 prominently displayed at all times on the front and one on the rear of
8 the registered motor vehicle or trailer.

9 (ii) When only one plate is issued, it shall be prominently
10 displayed on the rear of the registered motor vehicle or trailer.

11 (iii) When only one plate is issued for motor vehicles registered
12 pursuant to section 60-3,198 and truck-tractors, it shall be prominently
13 displayed on the front of the motor ~~apportionable~~ vehicle.

14 (3)(a) This subsection applies on and after January 1, 2029.

15 (b) One license plate shall be issued for every registered motor
16 vehicle or trailer.

17 (c) Except as otherwise provided in this subsection, the license
18 plate for a registered motor vehicle or trailer shall be prominently
19 displayed on the rear of the registered motor vehicle or trailer.

20 (d) When a license plate is issued for motor vehicles registered
21 pursuant to section 60-3,198 and truck-tractors, such license plate shall
22 be prominently displayed on the front of the apportionable vehicle or
23 truck-tractor.

24 (4)(a) The director shall designate an implementation date for this
25 subsection that is on or before January 1, 2029. Beginning on such
26 implementation date, the department may deliver any license plate or
27 registration certificate to the applicant or to the county treasurer of
28 the county in which the motor vehicle, trailer, or semitrailer is
29 registered by United States mail or through an alternative shipping
30 service. The delivery of such license plate or registration certificate
31 shall be made through a secure process.

1 (b) If delivery of any license plate or registration certificate is
2 made by the department to the applicant, the department may charge a
3 postage and handling fee in an amount not more than necessary to recover
4 the cost of postage and handling for the specific items mailed to the
5 applicant. The department shall remit the fee to the State Treasurer for
6 credit to the Department of Motor Vehicles Cash Fund.

7 (5) Any person who presents proof of registration shall be permitted
8 to operate the registered motor vehicle or tow the registered trailer for
9 a period of thirty days without a mailed license plate displayed.

10 **Sec. 11.** Section 60-3,104, Revised Statutes Supplement, 2025, is
11 amended to read:

12 60-3,104 The department shall issue the following types of license
13 plates:

14 (1) Alternate license plates issued pursuant to sections 60-3,163,
15 60-3,163.01, and 60-3,163.02;

16 (2) Amateur radio station license plates issued pursuant to section
17 60-3,126;

18 (3) Apportionable vehicle license plates issued pursuant to section
19 60-3,203;

20 (4) Autocycle license plates issued pursuant to section 60-3,100;

21 (5) Boat dealer license plates issued pursuant to section 60-379;

22 (6) Bus license plates issued pursuant to section 60-3,144;

23 (7) Commercial motor vehicle license plates issued pursuant to
24 section 60-3,147;

25 (8) Dealer or manufacturer license plates issued pursuant to
26 sections 60-3,114 and 60-3,115;

27 (9) Disabled veteran license plates issued pursuant to section
28 60-3,124;

29 (10) Farm truck license plates issued pursuant to section 60-3,146;

30 (11) Farm trucks with a gross weight of over sixteen tons license
31 plates issued pursuant to section 60-3,146;

1 (12) Former military vehicle license plates issued pursuant to
2 section 60-3,236;

3 (13) Gold Star Family license plates issued pursuant to sections
4 60-3,122.01 and 60-3,122.02;

5 (14) Handicapped or disabled person license plates issued pursuant
6 to section 60-3,113;

7 (15) Historical vehicle license plates issued pursuant to sections
8 60-3,130 to 60-3,134;

9 (16) Local truck license plates issued pursuant to section 60-3,145;

10 (17) Metropolitan utilities district license plates issued pursuant
11 to section 60-3,228;

12 (18) Military Honor Plates issued pursuant to sections 60-3,122.03
13 and 60-3,122.04;

14 (19) Minitruck license plates issued pursuant to section 60-3,100;

15 (20) Motor vehicle license plates for motor vehicles owned or
16 operated by the state, counties, municipalities, or school districts
17 issued pursuant to section 60-3,105;

18 (21) Motor vehicles exempt pursuant to section 60-3,107;

19 (22) Motorcycle license plates issued pursuant to section 60-3,100;

20 (23) Nonresident owner thirty-day license plates issued pursuant to
21 section 60-382;

22 (24) Organizational license plates issued pursuant to sections
23 60-3,104.01 and 60-3,104.02;

24 (25) Passenger car having a seating capacity of ten persons or less
25 and not used for hire issued pursuant to section 60-3,143 other than
26 autocycles;

27 (26) Passenger car having a seating capacity of ten persons or less
28 and used for hire issued pursuant to section 60-3,143 other than
29 autocycles;

30 (27) Pearl Harbor license plates issued pursuant to section
31 60-3,122;

1 (28) Personal-use dealer license plates issued pursuant to section
2 60-3,116;

3 (29) Personalized message license plates for motor vehicles,
4 trailers, and semitrailers, except motor vehicles, trailers, and
5 semitrailers registered under section 60-3,198, issued pursuant to
6 sections 60-3,118 to 60-3,121;

7 (30) Prisoner-of-war license plates issued pursuant to section
8 60-3,123;

9 (31) Public power district license plates issued pursuant to section
10 60-3,228;

11 (32) Purple Heart license plates issued pursuant to section
12 60-3,125;

13 (33) Recreational vehicle license plates issued pursuant to section
14 60-3,151;

15 (34) Repossession license plates issued pursuant to section 60-375;

16 (35) Special interest motor vehicle license plates issued pursuant
17 to section 60-3,135.01 for applications for such license plates that were
18 received by the department on or before December 31, 2028;

19 (36) Trailer license plates issued for trailers owned or operated by
20 the state, counties, municipalities, or school districts issued pursuant
21 to section 60-3,106;

22 (37) Trailer license plates issued for trailers owned or operated by
23 a metropolitan utilities district or public power district pursuant to
24 section 60-3,228;

25 (38) Trailer license plates issued pursuant to section 60-3,100;

26 (39) Trailer license plates issued pursuant to section 60-3,151;

27 (40) Trailers exempt pursuant to section 60-3,108;

28 (41) Transporter license plates issued pursuant to section 60-378;

29 (42) Trucks or combinations of trucks, truck-tractors, or trailers
30 that are not for hire and engaged in soil and water conservation work and
31 used for the purpose of transporting pipe and equipment exclusively used

1 by such contractors for soil and water conservation construction license
2 plates issued pursuant to section 60-3,149; and

3 (43) Well-boring apparatus and well-servicing equipment license
4 plates issued pursuant to section 60-3,109.

5 **Sec. 12.** Section 60-3,135.01, Revised Statutes Cumulative
6 Supplement, 2024, is amended to read:

7 60-3,135.01 (1)(a) ~~{1}~~ The department shall either modify an
8 existing plate design or design license plates to identify special
9 interest motor vehicles, to be known as special interest motor vehicle
10 license plates. The department, in designing such special interest motor
11 vehicle license plates, shall include the words special interest and
12 limit the manufacturing cost of each plate to an amount less than or
13 equal to the amount charged for license plates pursuant to section
14 60-3,102. The department shall choose the design of the plate.

15 (b) The department shall make applications available for this type
16 of plate until December 31, 2028 ~~when it is designed.~~

17 (c) The department shall not accept applications for special
18 interest motor vehicle license plates on or after January 1, 2029.

19 (d) Special interest motor vehicle license plates shall not be
20 renewed after December 31, 2028.

21 (2) One type of special interest motor vehicle license plate shall
22 be alphanumeric plates. The department shall:

23 (a) Assign a designation up to seven characters; and

24 (b) Not use a county designation.

25 (3) One type of special interest motor vehicle license plate shall
26 be personalized message plates. Such plates shall be issued subject to
27 the same conditions specified for personalized message license plates in
28 section 60-3,118.

29 (4) A person may apply to the department for a special interest
30 motor vehicle license plate in lieu of regular license plates on an
31 application prescribed and provided by the department for any special

1 interest motor vehicle, except that no motor vehicle registered under
2 section 60-3,198, autocycle, motorcycle, or trailer shall be eligible for
3 special interest motor vehicle license plates. The department shall make
4 forms available for such applications through the county treasurers.

5 (5) The form shall contain a description of the special interest
6 motor vehicle owned and sought to be registered, including the make, body
7 type, model, serial number, and year of manufacture.

8 (6)(a) In addition to all other fees required to register a motor
9 vehicle, each application for initial issuance or renewal of a special
10 interest motor vehicle license plate shall be accompanied by a special
11 interest motor vehicle license plate fee of fifty dollars. Twenty-five
12 dollars of the special interest motor vehicle license plate fee shall be
13 remitted to the State Treasurer for credit to the Department of Motor
14 Vehicles Cash Fund, and twenty-five dollars of the special interest motor
15 vehicle license plate fee shall be remitted to the State Treasurer for
16 credit to the Highway Trust Fund.

17 (b) Prior to January 1, 2029, if ~~If~~ a special interest motor vehicle
18 license plate is lost, stolen, or mutilated, the owner shall be issued a
19 replacement license plate pursuant to section 60-3,157.

20 (7) When the department receives an application for a special
21 interest motor vehicle license plate, the department may deliver the
22 plate and registration certificate to the applicant by United States mail
23 or to the county treasurer of the county in which the special interest
24 motor vehicle is registered and the delivery of the plate and
25 registration certificate shall be made through a secure process and
26 system. If delivery of the plates and registration certificate is made by
27 the department to the applicant, the department may charge a postage and
28 handling fee in an amount not more than necessary to recover the cost of
29 postage and handling for the specific items mailed to the registrant. The
30 department shall remit the fee to the State Treasurer for credit to the
31 Department of Motor Vehicles Cash Fund. The county treasurer or the

1 department shall issue the special interest motor vehicle license plate
2 in lieu of regular license plates when the applicant complies with the
3 other provisions of the Motor Vehicle Registration Act for registration
4 of the special interest motor vehicle.

5 (8) If the cost of manufacturing special interest motor vehicle
6 license plates at any time exceeds the amount charged for license plates
7 pursuant to section 60-3,102, any money to be credited to the Department
8 of Motor Vehicles Cash Fund under this section shall instead be credited
9 first to the Highway Trust Fund in an amount equal to the difference
10 between the manufacturing costs of special interest motor vehicle license
11 plates and the amount charged pursuant to section 60-3,102 with respect
12 to such license plates and the remainder shall be credited to the
13 Department of Motor Vehicles Cash Fund.

14 (9) The special interest motor vehicle license plate shall be
15 affixed to the rear of the special interest motor vehicle.

16 (10) A special interest motor vehicle shall not be used for the same
17 purposes and under the same conditions as other motor vehicles of the
18 same type and shall not be used for business or occupation or regularly
19 for transportation to and from work. A special interest motor vehicle may
20 be driven on the public streets and roads only for occasional
21 transportation, public displays, parades, and related pleasure or hobby
22 activities.

23 (11) It shall be unlawful to own or operate a motor vehicle with
24 special interest motor vehicle license plates in violation of this
25 section. Upon conviction of a violation of any provision of this section,
26 a person shall be guilty of a Class V misdemeanor.

27 (12) For purposes of this section, special interest motor vehicle
28 means a motor vehicle of any age which is being collected, preserved,
29 restored, or maintained by the owner as a leisure pursuit and not used
30 for general transportation of persons or cargo.

31 **Sec. 13.** Section 60-3,163.02, Revised Statutes Supplement, 2025, is

1 amended to read:

2 60-3,163.02 The department shall issue the following types of
3 alternate license plates pursuant to this section and sections 60-3,104,
4 60-3,163, and 60-3,163.01:

5 (1) Arbor Day Plates. The department shall design such license
6 plates in consultation with the Nebraska Statewide Arboretum and a
7 nonprofit organization holding a certificate of exemption under section
8 501(c)(3) of the Internal Revenue Code with a mission to inspire people
9 to plant, nurture, and celebrate trees. The design of such plates shall
10 represent the history and importance of Arbor Day in Nebraska. The
11 designated recipient for alternate license plate fees for Arbor Day
12 Plates is the Home of Arbor Day Plate Cash Fund. A person may apply for
13 Arbor Day Plates beginning on January 1, 2026;

14 (2) Breast Cancer Awareness Plates. The department shall design such
15 license plates to include a pink ribbon and the words "early detection
16 saves lives" along the bottom of the license plate. The designated
17 recipient for alternate license plate fees for Breast Cancer Awareness
18 Plates is the University of Nebraska Medical Center for the breast cancer
19 navigator program;

20 (3) Choice Color Plates. The department shall design four of such
21 license plates so that (a) a single solid-color background covers the
22 entire front of the license plates and (b) the license plate designations
23 use white characters. The options for single solid-color backgrounds
24 shall be black, red, green, and blue. Each application for initial
25 issuance or renewal of alphanumeric Choice Color Plates shall be
26 accompanied by a fee of seventy dollars. Each application for initial
27 issuance or renewal of personalized message Choice Color Plates shall be
28 accompanied by a fee of one hundred dollars. The designated recipient for
29 alternate license plate fees for Choice Color Plates is the Department of
30 Motor Vehicles Cash Fund. All fees collected pursuant to this subdivision
31 shall be remitted to the State Treasurer for credit to the Department of

1 Motor Vehicles Cash Fund. A person may apply for Choice Color Plates
2 beginning on January 1, 2027;

3 (4) ~~(3)~~ Choose Life License Plates. The department shall design such
4 license plates to reflect support for the protection of Nebraska's
5 children. The designated recipient for alternate license plate fees for
6 Choose Life License Plates is the Health and Human Services Cash Fund to
7 supplement federal funds available to the Department of Health and Human
8 Services for the Temporary Assistance for Needy Families program, 42
9 U.S.C. 601 et seq.;

10 (5) ~~(4)~~ Czech Heritage Plates. The department, in consultation with
11 the Czech Honorary Consul of Nebraska, shall design such license plates
12 to reflect Czech heritage in Nebraska. The designated recipient for
13 alternate license plate fees for Czech Heritage Plates is the Department
14 of Motor Vehicles Cash Fund;

15 (6) ~~(5)~~ Donate Life Plates. The department shall design such license
16 plates to reflect support for organ and tissue donation, registration as
17 a donor on the Donor Registry of Nebraska, and the federally designated
18 organ procurement organization for Nebraska. The designated recipient for
19 alternate license plate fees for Donate Life Plates is the Organ and
20 Tissue Donor Awareness and Education Fund;

21 (7) ~~(6)~~ Down Syndrome Awareness Plates. The department shall design
22 such license plates to include the words "Down syndrome awareness" inside
23 a heart-shaped yellow and blue ribbon. The designated recipient for
24 alternate license plate fees for Down Syndrome Awareness Plates is the
25 University of Nebraska Medical Center for the Down Syndrome Clinic;

26 (8) ~~(7)~~ Josh the Otter-Be Safe Around Water Plates. The department
27 shall design such license plates to include a blue background with the
28 head of an otter surfacing above water surrounded by the words "Josh the
29 Otter-Be Safe Around Water". The designated recipient for alternate
30 license plate fees for Josh the Otter-Be Safe Around Water Plates is the
31 Josh the Otter-Be Safe Around Water Cash Fund;

1 (9) ~~(8)~~ Mountain Lion Conservation Plates. The department shall
2 design such license plates to reflect support for the conservation of the
3 mountain lion population. The designated recipient for alternate license
4 plate fees for Mountain Lion Conservation Plates is the Game and Parks
5 Commission Educational Fund;

6 (10) ~~(9)~~ Native American Cultural Awareness and History Plates. The
7 department, in consultation with the Commission on Indian Affairs, shall
8 design license plates that reflect the unique culture and history of
9 Native American tribes historically and currently located in Nebraska.
10 The designated recipient for alternate license plate fees for Native
11 American Cultural Awareness and History Plates is the Native American
12 Scholarship and Leadership Fund;

13 (11)(a) ~~(10)(a)~~ Nebraska Cornhusker Spirit Plates. The department
14 shall design such license plates to (i) include the word "Cornhuskers" or
15 "Huskers" prominently in the design, (ii) use scarlet and cream colors in
16 the design or such other similar colors as the department determines to
17 best represent the official team colors of the University of Nebraska
18 Cornhuskers athletic programs and to provide suitable reflection and
19 contrast, (iii) use cream or a similar color for the background of the
20 design and scarlet or a similar color for the printing, and (iv) create a
21 design reflecting support for the University of Nebraska Cornhuskers
22 athletic programs in consultation with the University of Nebraska-Lincoln
23 Athletic Department.

24 (b) Alphanumeric Nebraska Cornhusker Spirit Plates shall (i) be
25 consecutively numbered beginning with the number one and use numbers that
26 are a size that maximizes legibility, and (ii) not use a county
27 designation or any characters other than numbers on the spirit plates.

28 (c) Personalized message Nebraska Cornhusker Spirit Plates shall be
29 issued subject to the same conditions specified for personalized message
30 license plates in subsection (2) of section 60-3,118. The characters used
31 shall consist only of letters, numerals, or a combination of letters and

1 numerals of the same size and design specified in section 60-3,100. A
2 maximum of seven characters may be used.

3 (d) Each application for initial issuance or renewal of Nebraska
4 Cornhusker Spirit Plates shall be accompanied by a fee of seventy
5 dollars. Fees collected pursuant to this subdivision shall be remitted to
6 the State Treasurer. The State Treasurer shall credit sixty percent of
7 the fee to the Department of Motor Vehicles Cash Fund and forty percent
8 of the fee to the designated recipient for alternate license plate fees.

9 (e) The designated recipient for alternate license plate fees for
10 Nebraska Cornhusker Spirit Plates is the Highway Trust Fund;

11 (12) ~~(11)~~ Nebraska History Plates. The department shall design such
12 license plates in consultation with the Nebraska State Historical Society
13 to reflect the importance of historical preservation in Nebraska and the
14 value of our shared Nebraska history. The designated recipient for
15 alternate license plate fees for Nebraska History Plates is the Support
16 Nebraska History Cash Fund;

17 (13) ~~(12)~~ Pets for Vets Plates. The department shall design such
18 license plates to support veterans and companion or therapy pet animals.
19 The designated recipient for alternate license plate fees for Pets for
20 Vets Plates is the Pets for Vets Cash Fund;

21 (14) ~~(13)~~ Prostate Cancer Awareness Plates. The department shall
22 design such license plates to include a light blue ribbon and the words
23 "early detection saves lives" along the bottom of the license plate. The
24 designated recipient for alternate license plate fees for Prostate Cancer
25 Awareness Plates is the University of Nebraska Medical Center for the
26 Nebraska Prostate Cancer Research Program;

27 (15) ~~(14)~~ Sammy's Superheroes license plates for childhood cancer
28 awareness. The department shall design such license plates to include a
29 blue handprint over a yellow ribbon and the words "childhood cancer
30 awareness". The designated recipient for alternate license plate fees for
31 Sammy's Superheroes license plates for childhood cancer awareness is the

1 University of Nebraska Medical Center for pediatric cancer research;

2 (16) ~~(15)~~ Support the Arts Plates. The department shall design such
3 license plates in consultation with the Nebraska Arts Council to reflect
4 support for the arts in Nebraska. The designated recipient for alternate
5 license plate fees for Support the Arts Plates is the Support the Arts
6 Cash Fund;

7 (17)(a) ~~(16)(a)~~ Support Our Troops Plates. The department shall
8 design such license plates to reflect support for troops from all
9 branches of the armed forces. The designated recipient for alternate
10 license plate fees for Support Our Troops Plates is the Veterans
11 Employment Program Fund.

12 (b)(i) Each application for initial issuance or renewal of
13 alphanumeric Support Our Troops Plates shall be accompanied by a fee of
14 five dollars. The State Treasurer shall credit five dollars of the fee to
15 the designated recipient for alternate license plate fees for Support Our
16 Troops Plates.

17 (ii) Each application for initial issuance or renewal of
18 personalized message Support Our Troops Plates shall be accompanied by a
19 fee of seventy dollars. Twenty-five percent of such fee shall be credited
20 to the Department of Motor Vehicles Cash Fund and seventy-five percent of
21 such fee shall be credited to the designated recipient for alternate
22 license plate fees for Support Our Troops Plates;

23 (18) ~~(17)~~ The Good Life Is Outside Plates. The department shall
24 design such license plates to reflect the importance of safe walking and
25 biking in Nebraska and the value of our recreational trails. The
26 designated recipient for alternate license plate fees for The Good Life
27 Is Outside Plates is the Game and Parks State Park Improvement and
28 Maintenance Fund for the purpose of trail improvement and maintenance;
29 and

30 (19) ~~(18)~~ Wildlife Conservation Plates. The department shall create
31 no more than three designs for such license plates to reflect support for

1 the conservation of Nebraska wildlife, including sandhill cranes, bighorn
2 sheep, and ornate box turtles. The designated recipient for alternate
3 license plate fees for Wildlife Conservation Plates is the Wildlife
4 Conservation Fund.

5 **Sec. 14.** Section 60-3,167, Reissue Revised Statutes of Nebraska, is
6 amended to read:

7 60-3,167 (1) It shall be unlawful for any owner of a motor vehicle
8 or trailer that ~~which~~ is being operated or towed with an In Transit
9 ~~stickers~~ pursuant to section 60-376, which is being operated or towed
10 pursuant to section 60-365 or 60-369, or which is required to be
11 registered in this state and that ~~which~~ is operated or towed on a public
12 highway of this state to allow the operation or towing of the motor
13 vehicle or trailer on a public highway of this state without having a
14 current and effective automobile liability policy, evidence of insurance,
15 or proof of financial responsibility. The owner shall be presumed to know
16 of the operation or towing of his or her motor vehicle or trailer on a
17 highway of this state in violation of this section when the motor vehicle
18 or trailer is being operated or towed by a person other than the owner.
19 An owner of a motor vehicle or trailer who operates or tows the motor
20 vehicle or trailer or allows the operation or towing of the motor vehicle
21 or trailer in violation of this section shall be guilty of a Class II
22 misdemeanor and shall be advised by the court that his or her motor
23 vehicle operator's license, motor vehicle certificate of registration,
24 and license plates will be suspended by the department until he or she
25 complies with sections 60-505.02 and 60-528. Upon conviction the owner
26 shall have his or her motor vehicle operator's license, motor vehicle
27 certificate of registration, and license plates suspended by the
28 department until he or she complies with sections 60-505.02 and 60-528.
29 The owner shall also be required to comply with section 60-528 for a
30 continuous period of three years after the violation. This subsection
31 shall not apply to motor vehicles or trailers registered in another

1 state.

2 (2) An owner who is unable to produce a current and effective
3 automobile liability policy, evidence of insurance, or proof of financial
4 responsibility upon the request of a law enforcement officer shall be
5 allowed ten days after the date of the request to produce proof to the
6 appropriate prosecutor or county attorney that a current and effective
7 automobile liability policy or proof of financial responsibility was in
8 existence for the motor vehicle or trailer at the time of such request.
9 Upon presentation of such proof, the citation shall be dismissed by the
10 prosecutor or county attorney without cost to the owner and no
11 prosecution for the offense cited shall occur.

12 (3) The department shall, for any person convicted for a violation
13 of this section, reinstate such person's operator's license, motor
14 vehicle certificate of registration, and license plates and rescind any
15 order requiring such person to comply with section 60-528 without cost to
16 such person upon presentation to the director that, at the time such
17 person was cited for a violation of this section, a current and effective
18 automobile liability policy or proof of financial responsibility was in
19 existence for the motor vehicle or trailer at the time the citation was
20 issued.

21 **Sec. 15.** Section 60-3,221, Revised Statutes Cumulative Supplement,
22 2024, is amended to read:

23 60-3,221 (1) Except as otherwise provided in the Motor Vehicle
24 Registration Act:

25 (a) A cabin trailer shall only be towed by a properly registered:

26 (i) Passenger car;

27 (ii) Commercial motor vehicle or apportionable vehicle;

28 (iii) Farm truck;

29 (iv) Local truck;

30 (v) Minitruck;

31 (vi) Recreational vehicle;

- 1 (vii) Bus; or
- 2 (viii) Former military vehicle;
- 3 (b) A utility trailer shall only be towed by:
- 4 (i) A properly registered passenger car;
- 5 (ii) A properly registered commercial motor vehicle or apportionable
- 6 vehicle;
- 7 (iii) A properly registered farm truck;
- 8 (iv) A properly registered local truck;
- 9 (v) A properly registered minitruck;
- 10 (vi) A properly registered recreational vehicle;
- 11 (vii) A properly registered motor vehicle which is engaged in soil
- 12 and water conservation pursuant to section 60-3,149;
- 13 (viii) A properly registered well-boring apparatus;
- 14 (ix) A dealer-plated vehicle;
- 15 (x) A personal-use dealer-plated vehicle;
- 16 (xi) A properly registered bus;
- 17 (xii) A properly registered public power district motor vehicle or,
- 18 beginning January 1, 2023, a properly registered metropolitan utilities
- 19 district motor vehicle; or
- 20 (xiii) A properly registered former military vehicle;
- 21 (c) A farm trailer shall only be towed by a properly registered:
- 22 (i) Passenger car;
- 23 (ii) Commercial motor vehicle;
- 24 (iii) Farm truck;
- 25 (iv) Minitruck; or
- 26 (v) Former military vehicle;
- 27 (d) A commercial trailer shall only be towed by:
- 28 (i) A properly registered motor vehicle which is engaged in soil and
- 29 water conservation pursuant to section 60-3,149;
- 30 (ii) A properly registered local truck;
- 31 (iii) A properly registered well-boring apparatus;

1 (iv) A properly registered commercial motor vehicle or apportionable
2 vehicle;

3 (v) A dealer-plated vehicle;

4 (vi) A personal-use dealer-plated vehicle;

5 (vii) A properly registered bus;

6 (viii) A properly registered farm truck; or

7 (ix) A properly registered public power district motor vehicle or,
8 beginning January 1, 2023, a properly registered metropolitan utilities
9 district motor vehicle;

10 (e) A fertilizer trailer shall only be towed by a properly
11 registered:

12 (i) Passenger car;

13 (ii) Commercial motor vehicle or apportionable vehicle;

14 (iii) Farm truck; or

15 (iv) Local truck;

16 (f) A pole and cable reel trailer shall only be towed by a properly
17 registered:

18 (i) Commercial motor vehicle or apportionable vehicle;

19 (ii) Local truck; or

20 (iii) Public power district motor vehicle or, beginning January 1,
21 2023, metropolitan utilities district motor vehicle;

22 (g) A dealer-plated trailer shall only be towed by:

23 (i) A dealer-plated vehicle;

24 (ii) A properly registered passenger car;

25 (iii) A properly registered commercial motor vehicle or
26 apportionable vehicle;

27 (iv) A properly registered farm truck;

28 (v) A properly registered minitruck;

29 (vi) A personal-use dealer-plated vehicle; or

30 (vii) A properly registered former military vehicle;

31 (h) Trailers registered pursuant to section 60-3,198 as part of an

1 apportioned fleet shall only be towed by:

2 (i) A properly registered motor vehicle which is engaged in soil and
3 water conservation pursuant to section 60-3,149;

4 (ii) A properly registered local truck;

5 (iii) A properly registered well-boring apparatus;

6 (iv) A properly registered commercial motor vehicle or apportionable
7 vehicle;

8 (v) A dealer-plated vehicle;

9 (vi) A personal-use dealer-plated vehicle;

10 (vii) A properly registered bus; or

11 (viii) A properly registered farm truck; and

12 (i) A trailer registered as a historical vehicle pursuant to
13 sections 60-3,130 to 60-3,134 shall only be towed by:

14 (i) A motor vehicle properly registered as a historical vehicle
15 pursuant to sections 60-3,130 to 60-3,134;

16 (ii) A properly registered passenger car;

17 (iii) A properly registered commercial motor vehicle or
18 apportionable vehicle; or

19 (iv) A properly registered local truck.

20 (2) Nothing in this section shall be construed to waive compliance
21 with the Nebraska Rules of the Road or Chapter 75.

22 (3) Nothing in this section shall be construed to prohibit any motor
23 vehicle or trailer from displaying dealer license plates or an In Transit
24 ~~stickers~~ authorized by section 60-376.

25 **Sec. 16.** Section 60-479, Reissue Revised Statutes of Nebraska, is
26 amended to read:

27 60-479 Sections 60-479.01 to ~~60-4,111.01, 60-4,113, 60-4,114,~~
28 ~~60-4,115 to 60-4,118 ,~~ and 60-4,182 to 60-4,189 and section 17 of this
29 act shall apply to any operator's license subject to the Motor Vehicle
30 Operator's License Act.

31 **Sec. 17.** Section 60-4,121, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 ~~60-4,121~~ (1) The operator's license of any person serving on active
3 duty, other than members of the National Guard or reserves activated for
4 training purposes only, outside the State of Nebraska as a member of the
5 United States Armed Forces, or the spouse of any such person or a
6 dependent of such member of the armed forces, shall be valid during such
7 person's period of active duty and for not more than sixty days
8 immediately following such person's date of separation from service.

9 (2) Each individual who is applying for renewal of his or her
10 operator's license shall submit his or her previous license to the
11 department personnel or, when the previous license is unavailable,
12 furnish proof of identification in accordance with section 60-484.

13 **Sec. 18.** Section 60-4,114, Reissue Revised Statutes of Nebraska, is
14 amended to read:

15 60-4,114 (1) The county treasurer may employ such additional
16 clerical help as may be necessary to assist him or her in the performance
17 of the ministerial duties required of him or her under the Motor Vehicle
18 Operator's License Act and, for such additional expense, shall be
19 reimbursed as set out in section 60-4,115.

20 (2) The director may:

21 (a) Appoint ~~, in his or her discretion, appoint~~ department personnel
22 to examine any applicant who applies for an initial license or whose
23 license has been revoked or canceled to ascertain such person's ability
24 to operate a motor vehicle properly and safely; and

25 (b) In ~~. Beginning on an implementation date designated by the~~
26 ~~director on or before January 1, 2022, the director may, in addition to~~
27 appointing department personnel, appoint driver safety course instructors
28 to examine any applicant who applies for an initial Class 0 operator's
29 license or whose Class 0 operator's license has been revoked or canceled
30 to ascertain such person's ability to operate a motor vehicle properly
31 and safely.

1 (3) Except as otherwise provided in section 60-4,122, the
2 application process, in addition to the other requisites of the act,
3 shall include the following:

4 (a) An inquiry into the medical condition and visual ability of the
5 applicant to operate a motor vehicle;

6 (b) An inquiry into the applicant's ability to drive and maneuver a
7 motor vehicle, except that no driving skills test shall be conducted
8 using an auticycle. The department may waive this requirement for a
9 qualified ignition interlock permit holder; and

10 (c) An inquiry touching upon the applicant's knowledge of the motor
11 vehicle laws of this state, which shall include sufficient questions to
12 indicate familiarity with the provisions thereof. The department may
13 wave this requirement for a qualified ignition interlock permit holder.
14 Such knowledge inquiry may be performed remotely if proctored by an agent
15 approved by the director.

16 (4) If an applicant is denied or refused a certificate for license
17 or a license is canceled, such applicant or licensee shall have the right
18 to an immediate appeal to the director from the decision. It shall be the
19 duty of the director to review the appeal and issue a final order, to be
20 made not later than ten days after the receipt of the appeal by the
21 director. The director shall issue a final order not later than ten days
22 following receipt of the medical opinion if the applicant or licensee
23 submits reports from a physician of his or her choice for the director's
24 consideration as provided in section 60-4,118.03. The applicant or
25 licensee who files an appeal pursuant to this section shall notify the
26 director in writing if he or she intends to submit records or reports for
27 consideration. Such notice must be received by the director not later
28 than ten days after an appeal is filed pursuant to this section to stay
29 the director's decision until after the consideration of such records or
30 reports as provided in section 60-4,118.03. After consideration of
31 evidence in the records of the applicant or licensee, including any

1 records submitted by the applicant or licensee, the director shall make a
2 determination of the physical or mental ability of the applicant or
3 licensee to operate a motor vehicle and shall issue a final order. The
4 order shall be in writing, shall be accompanied by findings of fact and
5 conclusions of law, and shall be sent by regular United States mail to
6 the last-known address of the applicant or licensee. The order may be
7 appealed as provided in section 60-4,105.

8 (5) For purposes of this section, qualified ignition interlock
9 permit holder means a person who holds an ignition interlock permit and:

10 (a) When applying for such ignition interlock permit, passed a
11 driving skills test and a test on the knowledge of the motor vehicle laws
12 of this state; and

13 (b) Completed an operator's license revocation period of one year or
14 less relating to such ignition interlock permit.

15 **Sec. 19.** Section 60-4,112, Reissue Revised Statutes of Nebraska, is
16 amended to read:

17 ~~60-4,112~~ Sections 60-4,118.03 ~~60-4,114.01~~ and ~~60-4,118.01~~ to
18 60-4,130.05 and sections 19 to 21 of this act shall apply to the
19 operation of any motor vehicle except a commercial motor vehicle.

20 **Sec. 20.** Section 60-4,114.01, Reissue Revised Statutes of Nebraska,
21 is amended to read:

22 ~~60-4,114.01~~ An applicant for a Class O or Class M license that fails
23 three successive tests of his or her ability to drive and maneuver a
24 motor vehicle safely as provided in subdivision (3)(b) of section
25 60-4,114 may be issued an LPD-learner's permit. The applicant shall not
26 be eligible to reapply for the Class O or Class M license and retake such
27 test until he or she presents proof of successful completion of a
28 department-approved driver training school or until he or she has held an
29 LPD-learner's permit for at least ninety days.

30 **Sec. 21.** Section 60-4,118.01, Reissue Revised Statutes of Nebraska,
31 is amended to read:

1 ~~60-4,118.01~~ The Legislature finds and declares that:

2 (1) The operation of a motor vehicle on the highways of the state is
3 a privilege and that no person should operate a motor vehicle on the
4 highways of this state if not physically or mentally capable of safely
5 doing so;

6 (2) The approval or denial of an application for an operator's
7 license or the revocation of an operator's license may provide or prevent
8 an opportunity for the applicant or licensee to obtain or maintain
9 gainful employment; and

10 (3) Under certain circumstances, careful medical review and
11 evaluation of an applicant for an operator's license or of a licensee is
12 necessary to protect the interest of the applicant or licensee and the
13 health, safety, and welfare of the public.

14 **Sec. 22.** Section 60-4,122, Revised Statutes Cumulative Supplement,
15 2024, is amended to read:

16 60-4,122 (1) Except as otherwise provided in subsections (2), (3),
17 and (8) of this section, no original or renewal operator's license shall
18 be issued to any person until such person has demonstrated his or her
19 ability to operate a motor vehicle safely as provided in section
20 60-4,114.

21 (2) Except as otherwise provided in this section and section
22 60-4,127, any person who renews his or her Class O or Class M license
23 shall demonstrate his or her ability to drive and maneuver a motor
24 vehicle safely as provided in subdivision (3)(b) of section 60-4,114 only
25 at the discretion of department personnel, except that a person required
26 to use bioptic or telescopic lenses shall be required to demonstrate his
27 or her ability to drive and maneuver a motor vehicle safely each time he
28 or she renews his or her license.

29 (3) Any person who renews his or her Class O or Class M license
30 prior to or within one year after its expiration may not be required to
31 demonstrate his or her knowledge of the motor vehicle laws of this state

1 as provided in subdivision (3)(c) of section 60-4,114 if his or her
2 driving record abstract maintained in the computerized records of the
3 department shows that such person's license is not impounded, suspended,
4 revoked, or canceled.

5 (4) Except for operators' licenses issued to persons required to use
6 bioptic or telescopic lenses, any person who renews his or her operator's
7 license which has been valid for fifteen months or less shall not be
8 required to take any examination required under section 60-4,114.

9 (5) Any person who renews a state identification card shall appear
10 before department personnel and present his or her current state
11 identification card or shall follow the procedure for electronic renewal
12 in subsection (9) of this section. Proof of identification shall be
13 required as prescribed in sections 60-484 and 60-4,181 and the
14 information and documentation required by sections 60-484.04 and
15 60-484.07.

16 (6)(a) If a nonresident who applies for an initial operator's
17 license in this state presents a physical or mobile valid operator's
18 license from the individual's state of residence, the department may
19 choose not to require such individual to demonstrate knowledge of the
20 motor vehicle laws of this state.

21 (b) A physical operator's license described in subdivision (a) of
22 this subsection shall be surrendered to the department.

23 (c) Upon issuing an initial operator's license described in
24 subdivision (a) of this subsection, the department shall notify the state
25 that issued the valid operator's license described in subdivision (a) of
26 this subsection to invalidate such license.

27 (7) An applicant for an original operator's license may not be
28 required to demonstrate his or her knowledge of the motor vehicle laws of
29 this state if he or she has been issued a Nebraska LPD-learner's permit
30 that is valid or has been expired for no more than one year. The written
31 examination shall not be waived if the original operator's license being

1 applied for contains a class or endorsement which is different from the
2 class or endorsement of the Nebraska LPD-learner's permit.

3 ~~(8)(a)(i)~~ ~~(8)(a)~~ A qualified licensee as determined by the
4 department may renew his or her Class 0 or Class M license under this
5 subdivision (a) if such person:

6 (A) Is ~~who is~~ twenty-one years of age or older;

7 (B) Holds a ~~, whose~~ license ~~that~~ expires prior to his or her
8 seventy-second birthday; ~~, and~~

9 (C) Has ~~who has~~ a digital image and digital signature preserved in
10 the digital system.

11 (ii) A renewal under this subdivision (a) may occur ~~may renew his or~~
12 ~~her Class 0 or Class M license twice by electronic means in a manner~~
13 prescribed by the department using the preserved digital image and
14 digital signature without taking any examination required under section
15 60-4,114 if:

16 (A) Such ~~such~~ renewal is prior to or within one year after the
17 expiration of the license;

18 (B) Such person's ~~, if his or her~~ driving record abstract maintained
19 in the records of the department shows that such person's license is not
20 impounded, suspended, revoked, or canceled; ~~, and~~

21 (C) Such person's ~~if his or her~~ driving record indicates that he or
22 she is otherwise eligible.

23 (iii) A renewal under this subdivision (a) may occur:

24 (A) By electronic means; or

25 (B) In-person at any location approved by the department.

26 (iv) Every licensee, including a licensee who is out of the state at
27 the time of renewal, ~~shall must~~ apply for renewal in person at least once
28 every sixteen years and have a new digital image and digital signature
29 captured.

30 (b) In order to allow for an orderly progression through the various
31 types of operators' licenses issued to persons under twenty-one years of

1 age, a qualified holder of an operator's license who is under twenty-one
2 years of age and who has a digital image and digital signature preserved
3 in the digital system may apply for an operator's license by electronic
4 means in a manner prescribed by the department using the preserved
5 digital image and digital signature if the applicant has passed any
6 required examinations prior to application, if his or her driving record
7 abstract maintained in the records of the department shows that such
8 person's operator's license is not impounded, suspended, revoked, or
9 canceled, and if his or her driving record indicates that he or she is
10 otherwise eligible.

11 (9) Any person who is twenty-one years of age or older and who has
12 been issued a state identification card with a digital image and digital
13 signature may electronically renew his or her state identification card
14 by electronic means in a manner prescribed by the department using the
15 preserved digital image and digital signature. Every person renewing a
16 state identification card under this subsection, including a person who
17 is out of the state at the time of renewal, shall ~~must~~ apply for renewal
18 in person at least once every sixteen years and have a new digital image
19 and digital signature captured.

20 (10) In addition to services available at driver license offices,
21 the department may develop requirements for using electronic means for
22 online issuance of operators' licenses and state identification cards to
23 qualified holders as determined by the department.

24 **Sec. 23.** Section 60-529, Reissue Revised Statutes of Nebraska, is
25 amended to read:

26 60-529 (1)(a) Prior to July 1, 2027, proof ~~Proof~~ of financial
27 responsibility may be furnished by (i) ~~(1)~~ filing with the department the
28 written certificate of any insurance carrier, duly authorized to do
29 business in this state, or (ii) ~~(2)~~ electronic transmission of a
30 certificate by an insurance carrier, duly authorized to do business in
31 this state, certifying that there is in effect a motor vehicle liability

1 policy for the benefit of the person required to furnish proof of
2 financial responsibility, also known as an SR-22 certificate.

3 (b) Beginning July 1, 2027, proof of financial responsibility shall
4 be furnished by electronic transmission of a certificate by an insurance
5 carrier, duly authorized to do business in this state, certifying that
6 there is in effect a motor vehicle liability policy for the benefit of
7 the person required to furnish proof of financial responsibility, also
8 known as an SR-22 certificate.

9 (2) Such certificate shall give the effective date of the
10 certificate and designate, by explicit description or by appropriate
11 reference, all motor vehicles covered thereby unless the policy is issued
12 to a person who is not the owner of a motor vehicle.

13 (3) A certificate of insurance for fleet vehicles may include, as an
14 appropriate reference, a designation that the insurance coverage is
15 applicable to all vehicles owned by the named insured, or wording of
16 similar effect, in lieu of an explicit description.

17 **Sec. 24.** Section 60-6,340, Reissue Revised Statutes of Nebraska, is
18 amended to read:

19 60-6,340 (1) No person under the age of sixteen ~~twelve~~ years shall
20 operate a snowmobile in this state unless accompanied by a parent,
21 guardian, or other person over eighteen years of age.

22 ~~(2) No person over the age of twelve years and under the age of~~
23 ~~sixteen years shall operate a snowmobile in this state unless such person~~
24 ~~(a) holds a valid snowmobile safety certificate, (b) is accompanied by a~~
25 ~~person fourteen years of age or over who holds a valid snowmobile safety~~
26 ~~certificate, or (c) is accompanied by a person over the age of eighteen~~
27 ~~years.~~

28 ~~(2) (3)~~ The operator of a snowmobile shall not be required to hold
29 an operator's license.

30 **Sec. 25.** Section 60-1901, Reissue Revised Statutes of Nebraska, is
31 amended to read:

1 60-1901 (1) A motor vehicle is an abandoned vehicle:

2 (a) If left unattended, with no license plates or a valid In Transit
3 ~~stickers~~ issued pursuant to the Motor Vehicle Registration Act affixed
4 thereto, for more than six hours on any public property;

5 (b) If left unattended for more than twenty-four hours on any public
6 property, except a portion thereof on which parking is legally permitted;

7 (c) If left unattended for more than forty-eight hours, after the
8 parking of such vehicle has become illegal, if left on a portion of any
9 public property on which parking is legally permitted;

10 (d) If left unattended for more than seven days on private property
11 if left initially without permission of the owner, or after permission of
12 the owner is terminated;

13 (e) If left for more than thirty days in the custody of a law
14 enforcement agency after the agency has sent a letter to the last-
15 registered owner and lienholder under section 60-1903.01; or

16 (f) If removed from private property by a municipality pursuant to a
17 municipal ordinance.

18 (2) An all-terrain vehicle, a utility-type vehicle, or a minibike is
19 an abandoned vehicle:

20 (a) If left unattended for more than twenty-four hours on any public
21 property, except a portion thereof on which parking is legally permitted;

22 (b) If left unattended for more than forty-eight hours, after the
23 parking of such vehicle has become illegal, if left on a portion of any
24 public property on which parking is legally permitted;

25 (c) If left unattended for more than seven days on private property
26 if left initially without permission of the owner, or after permission of
27 the owner is terminated;

28 (d) If left for more than thirty days in the custody of a law
29 enforcement agency after the agency has sent a letter to the last-
30 registered owner and lienholder under section 60-1903.01; or

31 (e) If removed from private property by a municipality pursuant to a

1 municipal ordinance.

2 (3) A mobile home is an abandoned vehicle if left in place on
3 private property for more than thirty days after a local governmental
4 unit, pursuant to an ordinance or resolution, has sent a certified letter
5 to each of the last-registered owners and posted a notice on the mobile
6 home, stating that the mobile home is subject to sale or auction or
7 vesting of title as set forth in section 60-1903.

8 (4) For purposes of this section:

9 (a) Mobile home means a movable or portable dwelling constructed to
10 be towed on its own chassis, connected to utilities, and designed with or
11 without a permanent foundation for year-round living. It may consist of
12 one or more units that can be telescoped when towed and expanded later
13 for additional capacity, or of two or more units, separately towable but
14 designed to be joined into one integral unit, and shall include a
15 manufactured home as defined in section 71-4603. Mobile home does not
16 include a mobile home or manufactured home for which an affidavit of
17 affixture has been recorded pursuant to section 60-169;

18 (b) Public property means any public right-of-way, street, highway,
19 alley, or park or other state, county, or municipally owned property; and

20 (c) Private property means any privately owned property which is not
21 included within the definition of public property.

22 (5) No motor vehicle subject to forfeiture under section 28-431
23 shall be an abandoned vehicle under this section.

24 **Sec. 26.** Section 60-1902, Reissue Revised Statutes of Nebraska, is
25 amended to read:

26 60-1902 If an abandoned vehicle, at the time of abandonment, has no
27 license plates of the current year or a valid In Transit ~~stickers~~ issued
28 pursuant to section 60-376 affixed and is of a wholesale value, taking
29 into consideration the condition of the vehicle, of five hundred dollars
30 or less, title shall immediately vest in the local authority or state
31 agency having jurisdiction thereof as provided in section 60-1904. Any

1 certificate of title issued under this section to the local authority or
2 state agency shall be issued at no cost to such authority or agency.

3 **Sec. 27.** Original sections 18-1736, 37-1278.01, 60-376, 60-378,
4 60-3,167, 60-479, 60-4,112, 60-4,114, 60-4,114.01, 60-4,118.01, 60-4,121,
5 60-529, 60-6,340, 60-1901, and 60-1902, Reissue Revised Statutes of
6 Nebraska, sections 60-3,135.01, 60-3,221, and 60-4,122, Revised Statutes
7 Cumulative Supplement, 2024, and sections 28-306, 60-301, 60-302, 60-386,
8 60-3,100, 60-3,104, and 60-3,163.02, Revised Statutes Supplement, 2025,
9 are repealed.

10 **Sec. 28.** The following section is outright repealed: Section
11 60-6,341, Reissue Revised Statutes of Nebraska.